

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 6

Honorable Rafael Sivilla-Jones, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2160

July 7, 2026

9:00 and 9:01 A.M.

RECORDING COURT PROCEEDINGS IS PROHIBITED

ORAL ARGUMENT

Before 4:00 PM today you must notify the:

- (1) Court by calling (408) 808-6856 and
- (2) Other side by phone or email that you will appear at the hearing to contest the tentative

If you fail to so notify the court or opposing side, the Court will not hear argument, and the tentative ruling will be adopted. (California Rule of Court 3.1308(a)(1) and Local Rule 8.E.)

REMOTE APPEARANCES

Phone only appearances are PROHIBITED. In-person appearances are preferred.

For necessary virtual appearances, you **must use video** and follow **Civil Local Rule 5.**

To access the courtroom, click or copy and paste this link into your internet browser and scroll to

Department 6: <https://santaclara.courts.ca.gov/online-services/remote-hearings>

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	24CV444665	Wilson Catalan vs. Ford Motor Company	See below
9:00 2	24CV446885	Albert O'Hara vs. Neelam Lopez	Plaintiff petitions this court to compel defendant to respond to form interrogatories and to award monetary damages for attorney costs. Defendant after receiving motion to compel did provide responses to form interrogatories. Plaintiff's petition to compel defendant to respond is MOOT. Since the answer did not come until Plaintiff's motion to compel was submitted, Plaintiff's motion for monetary damages is GRANTED.
9:00 3	25CV456446	Gurdeep Saluja vs. Hyundai Motor America	Defendant moves this court to compel Plaintiff for Deposition and Production of Documents. It appears that Defendant properly served notice on Plaintiff and dates had been agreed upon but Plaintiff refused to appear. Plaintiff has filed no opposition to Defendant's motion. Defendant's motion is GRANTED. Defendant's motion for monetary damages is GRANTED.
9:00 4	25CV461544	Wells Fargo Bank vs. Serena Marquez	Plaintiff moves this court for a judgment on the pleadings. Defendant owes Plaintiff \$6,183.17 on her credit card. Defendant filed no opposition to Plaintiff's motion. Plaintiff's motion is GRANTED
9:00 5	25CV465961	Mariner Finance vs. Vickie Hunter	Plaintiff moves this court to deem request for admissions to be deemed admitted. Plaintiff served Defendant with request for admissions on September 19, 2025, but Defendant never responded. Defendant filed no objection to Plaintiff's motion. Plaintiff's motion is GRANTED.
9:00 6	25CV474549	Cynthia Schwarting et al vs. Kyle Kwong, et.al.	See below
9:00 7	25CV479632	Melissa Bentz vs. James Bentz	See below
9:00 8	25CV481161	Hao Chen vs Zhipeng Lu	See below.
9:00 9	26CV493281	Vladimir Vedeneev vs. Roman Anin, et.al.	Defendant YouTube is ordered to show cause as to why a preliminary injunction should not be imposed. YouTube hosted a video that co-defendant Ronan Anin uploaded. A party who plays no role in an unlawful interception of a communication cannot be enjoined from publishing the resulting speech when it bears on a matter of public concern. <i>Bartnicki vs Vopper</i> , 532 U.S. 514 (2001). The videos addressed the security of a global messaging platform and is a matter of public concern as evident by the massive amounts of views. The First Amendment bars any claims for injunctive relief. A preliminary injunction in this matter is DENIED.
9:00 10	21CV3900666	Eric Hartman et.al. vs Koshy George	Defendant moves this court to award attorney fees and costs. Defendant was the prevailing party. Defendant's motion is GRANTED. Court seeks oral argument regarding amount of sanctions.
9:01 1	22CV397160	John Lam, et.al. vs The Signature Motors, LLC	Plaintiff's attorney moves to withdraw as counsel. There is no opposition filed. Plaintiff's attorney's motion is GRANTED.
9:01 2	23CV423813	Absolute Resolutions Investments, LLC vs Azim Uddin	Defendant moves this court for exemption from wage garnishment. No opposition was filed. Defendant claims that he needs all of his income to support his spouse and his son. This court agrees. Defendant's motion is GRANTED.

Calendar Line 1

Case Name: *Catalan v. Ford Motor Co., et al.*

Case No.: 24CV444665

Defendants Ford Motor Company and All Star Ford (collectively, “Defendants”) move for judgment on the pleadings on the first through fourth causes of action, asserting that “Plaintiff’s failure to respond to Ford’s Requests for Admission (‘RFAs’) resulted in a court order deeming them admitted... [and t]hose deemed admissions conclusively negate essential elements of Plaintiff’s Song-Beverly claims... claims for negligence and establish the absence of any recoverable damages.” (Defs.’ memorandum of points and authorities in support of motion for judgment on the pleadings (“Defs.’ memo”), p.3:9-13.) In support of their motion, Defendants presented a tentative ruling and a proposed order submitted on February 18, 2026 that “remains waiting for the final signature of the Court.” (Vanderhoof decl. in support of Defs.’ motion for judgment on the pleadings, ¶ 5.) Defendants did not request judicial notice of any order in connection with their motion. Thereafter, in connection with their reply brief, Defendants requested judicial notice of the March 10, 2026 order regarding the matters in the RFAs as conclusively established.

Here, Defendants did not present the March 10, 2026 order in connection with their motion. While the Court may, in addition to the facts pleaded, consider matters that are proper subjects of judicial notice, including a party’s admissions, the matter upon which the motion was premised was not presented. Indeed, the Vanderhoof declaration plainly states that Defendants did not have a final order regarding the matters in the RFAs. Instead, Defendants did not request judicial notice of the March 10, 2026 order until after Plaintiff had filed his opposition. The Court may not consider Defendants’ request for judicial notice, made for the first time in reply, as it violates Plaintiff’s due process rights. (See *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 316 (stating that “the evidence... was not filed until after

assignee had responded to the issues... [i]n considering this evidence, the court violated assignee's due process rights"); see also *Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 228 (Sixth District stating that "[t]he general rule of motion practice... is that new evidence is not permitted with reply papers"); see also *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537 (stating same); see also *Jack v. Ring LLC* (2023) 91 Cal.App.5th 1186, 1210 (stating same); see also *City of Rocklin v. Legacy Family Adventures-Rocklin, LLC* (2022) 86 Cal.App.5th 713, 730 (stating same).) These issues are also more properly the subject of a motion for summary judgment. Defendants' motion for judgment on the pleadings is DENIED in its entirety.

Plaintiff shall prepare and submit a proposed final order consistent with this tentative ruling.

Calendar Line 6

Case Name: *Schwarting, et al. v. Kwong, et al.*

Case No.: 25CV474549

City's demurrer to the fifth cause of action for inverse condemnation

"A successful inverse condemnation claimant must prove that a public entity has taken or damaged its property for a public use." (*Pacific Bell v. City of San Diego* (2000) 81 Cal.App.4th 596, 602.) "To state a cause of action for inverse condemnation, the plaintiff must allege the defendant substantially participated in the planning, approval, construction, or operation of a public project or improvement which proximately caused injury to plaintiff's property." (*City of Pasadena v. Super. Ct. (Mercury Casualty Co.)* (2014) 228 Cal.App.4th 1228, 1233.) "[A] public improvement for the purposes of an inverse condemnation claim involves (1) a deliberate action by the state (2) taken in furtherance of public purposes." (*Id.* at p.1234.) "There is no 'deliberate governmental action' when the purported public improvement is neither an 'instrumentalit[y] of the state nor... controlled by the state.'" (*Id.*) Here, the complaint alleges neither a taking nor

the damaging of property for a public use, nor a deliberate governmental action. Rather, the complaint plainly alleges that “Defendant Kwong, and/or his agents... commenced and undertook significant construction, grading, and excavation work on the Adjacent Property, directly abutting the property line of the Subject Property... failed to obtain the required permits and pass necessary inspections for such work... [and d]espite being put on notice of the damage and danger their work had created, and despite a prior mediation attempt, Defendant Kwong has failed and refused to take the necessary steps to stabilize the land, repair the damage they caused, or otherwise abate the dangerous condition.” (Complaint, ¶¶ 11-16.) The sole allegations regarding demurring defendant City of Mountain View (“City”) is that it “was notified of the hazardous condition through multiple complaints made by Plaintiffs to its Building Department... [to which it] stated that it ‘can’t do anything’ to compel Defendants to act unless and until further physical damage to a utility line occurs.” (Complaint, ¶ 17.) Plainly, the complaint alleges facts that establish that City is not liable for a cause of action for inverse condemnation. In opposition, plaintiffs Cynthia Jehning Schwarting (“Schwarting”) and Meredith Clancy (“Clancy”) (collectively, “Plaintiffs”) do not show in what manner they could possibly amend the complaint so as to state a viable cause of action. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 (stating that “Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading”).) City’s demurrer to the fifth cause of action for inverse condemnation is SUSTAINED without leave to amend.

Demurrer to the second cause of action for private nuisance

As to the second cause of action for private nuisance, City argues that a private nuisance cause of action may not be pled against a public entity and that the second cause of action fails to allege facts supporting the elements of a private nuisance cause of action. As to whether a private nuisance cause of action may be asserted against a public entity, City is incorrect: “In *Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, at page 937..., our Supreme Court concluded that ‘section 815 of the Government Code does not bar nuisance actions against public entities to

the extent such actions are founded on section 3479 of the Civil Code or other statutory provisions that may be applicable.” (*Pfleger v. Super. Ct. (City of Pacifica)* (1985) 172 Cal.App.3d 421, 429; see also *Longfellow v. County of San Luis Obispo* (1983) 144 Cal.App.3d 379, 384 (stating same); see also *Friends of H Street v. City of Sacramento* (1993) 20 Cal.App.4th 152, 159, fn. 2 (stating that “Government Code section 815, which limits government tort liability, does not bar nuisance actions against public entities to the extent such actions satisfy the requirements of Civil Code section 3479”).) However, “a governmental entity may not be held liable for failing to abate a nuisance existing on private property.” (*Washington v. County of Contra Costa* (1995) 38 Cal.App.4th 890, 900.) In *Washington, supra*, “[t]he property here was privately owned and the alleged nuisance also was private,” and the court stated that “Plaintiffs can recover on these theories, therefore, only if they can show the existence of some overriding mandatory statutory duty... [w]e have found that they cannot.” (*Id.*) Here, as in *Washington*, this involves a dispute between two neighboring owners of private property. The complaint alleges that Kwong created a pit through excavation work at 134 Beatrice Street in Mountain View, which directly abutted the property line at 156 Beatrice Street, and “[a]s a direct and proximate result of Defendants’ wrongful conduct, the lateral and subjacent support for the Subject Property was removed, creating a sheer, vertical and unsupported cliff of earth along the property line... [that] has caused soil, earth, and rock on the Subject Property to subside, collapse, and slide into the excavation pit below,” and that it is this condition that constitutes the alleged private nuisance. (Complaint, ¶¶ 9-16, 26-28 (stating that the alleged nuisance that is the subject of the second cause of action is “the large, unstable, and hazardous excavation pit which has removed support for and caused ongoing damage to the Subject Property”).) The complaint alleges no facts supporting a cause of action for private nuisance against City. In opposition, Plaintiffs argue that they “can amend to identify the statutory and regulatory basis for the City’s duty in connection with its oversight, permitting, and enforcement role over the excavation.” (Opposition, p.8:2-4.) However, Plaintiff fails to identify any such statute in their opposition and thus do not show in what manner they could possibly amend the complaint so as to state a viable cause of action. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 (stating that “Plaintiff

must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading”); see also *City of Los Angeles v. Super. Ct. (Wong)* (2021) 62 Cal.App.5th 129, 138 (stating that “statutory causes of action must be pleaded with particularity... [t]hus, to state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity”); see also *Covenant Care, Inc. v. Super. Ct. (Inclan)* (2004) 32 Cal.4th 771, 790 (stating that “statutory causes of action must be pleaded with particularity”).) City’s demurrer to the second cause of action is SUSTAINED without leave to amend on this basis.

Additionally, City argues that Plaintiffs have not presented a government claim with regards to the assertion of a private nuisance. City’s request for judicial notice is GRANTED. (See *Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 376 (stating that “the governmental entity can request the court to take judicial notice under Evidence Code section 452, subdivision (c) that the entity’s records do not show compliance... with the claims presentation requirement”).) As City argues, Government Code section 945.4 states that “no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented... until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board...” (Gov. Code § 945.4.) In opposition, Plaintiffs argue that even though they have not presented a claim, “the claims statutes apply only to actions for money or damages,” and the second cause of action seeks injunctive relief which does not require the presentation of a claim. However, the second cause of action expressly alleges that it seeks “damages, including costs of repair, diminution in property value, and general damages for the loss of enjoyment, annoyance, discomfort, and emotional distress they have endured and will continue to endure.” (Complaint, ¶ 29.) “Unless a specific exception applies, ‘[a] suit for ‘money or damages’ includes all actions where the plaintiff is seeking monetary relief, regardless whether the action is founded in ‘tort, contract or some other theory.’” (*Lozada v. City and County of San Francisco* (2006) 145 Cal.App.4th 1139, 1152 (also stating that “[t]he claim filing requirement has been held applicable

to claims arising out of negligence, nuisance, breach of statutory duties, intentional wrongs and contract”).)

Plaintiffs alternatively argue that the nuisance is a continuing nuisance for which Plaintiffs may bring successive actions until the nuisance is abated, and thus Plaintiffs may still present a claim, and they have substantially complied with the claims requirements. However, Plaintiffs fundamentally misunderstand the claims presentation requirements. “The Government Claims Act (§ 810 et seq.) ‘establishes certain conditions precedent to the filing of a lawsuit against a public entity.’” (*Le Mere v. Los Angeles Unified School Dist.* (2019) 35 Cal.App.5th 237, 246; see also *Willis v. City of Carlsbad* (2020) 48 Cal.App.5th 1104, 1118 (stating same).) “[A] plaintiff must timely file a claim for money or damages with the public entity... [t]he failure to do so bars the plaintiff from bringing suit against that entity.” (*Le Mere, supra*, 35 Cal.App.5th at p.246; see also *Willis, supra*, 48 Cal.App.5th at p.1118 (stating same).) “Accrual for purposes of the Act is the date of accrual that would pertain under the statute of limitations applicable to a dispute between private litigants.” (*Willis, supra*, 48 Cal.App.5th at p.1118.) “Timely claim presentation is not merely a procedural requirement, but is a condition precedent to the claimant’s ability to maintain an action against the public entity.” (*Le Mere, supra*, 35 Cal.App.5th at p.246; see also *Willis, supra*, 48 Cal.App.5th at p.1118 (stating same); see also *Harland, supra*, 120 Cal.App.5th at p.1171 (stating that “[s]atisfying the Act’s claim presentation requirements is a condition precedent to a tort action”).) “Only after the public entity’s board has acted upon or is deemed to have rejected the claim may the injured person bring a lawsuit alleging a cause of action in tort against the public entity.” (*Le Mere, supra*, 35 Cal.App.5th at p.246; see also *Willis, supra*, 48 Cal.App.5th at p.1118; see also *Harland, supra*, 120 Cal.App.5th at p.1168 (stating that “the claimant cannot sue the public entity unless and until they have complied with the first requirement, and that entity has either outright denied the claim or failed to act upon the claim within 45 days”).) “The failure to timely present a claim to the public entity bars the claimant from filing a lawsuit against that public entity.” (*Le Mere, supra*, 35 Cal.App.5th at p.246; see also *City of San Jose v. Super. Ct. (Lands Unlimited)* (1974) 12

Cal.3d 447, 454 (California Supreme Court stating that “[c]ompliance with the claims statutes is mandatory... and failure to file a claim is fatal to the cause of action... [t]he claims statutes provisions apply to actions brought both for nuisance and for inverse condemnation”). “[T]he timely filing of a written government claim is an element that a plaintiff is required to prove in order to prevail on his or her cause of action.” (*Willis, supra*, 48 Cal.App.5th at p.1119.) “Thus, a complaint failing to allege facts demonstrating timely presentation of a claim or that such presentation was excused is subject to a general demurrer for not stating facts sufficient to constitute a cause of action.” (*Id.*; see also *Harland, supra*, 120 Cal.App.5th at p.1171 (stating that “[f]ailing to comply with the claim presentation requirements subjects a complaint to a general demurrer for failure to state a claim”). “The claim presentation requirements ensure public entities get sufficient information to investigate claims *without the expense of litigation.*” (*Harland, supra*, 120 Cal.App.5th at p.1171, citing *City of Stockton v. Super. Ct. (Civic Partners Stockton, LLC)* (2007) 42 Cal.4th 730, 746.) “Suing a public entity before presenting it with a claim defeats this function.” (*Id.*) “Plaintiffs must satisfy the claim presentation requirements even if the entity had actual knowledge of the circumstances surrounding the claim.” (*Harland, supra*, 120 Cal.App.5th at p.1171; see also *City of San Jose, supra*, 12 Cal.3d at p.455 (California Supreme Court stating that “the purpose of these statutes is to provide the public entity sufficient information to enable it to adequately investigate claims and to settle them, if appropriate, without the expense of litigation... [i]t is well-settled that claims statutes must be satisfied even in face of the public entity’s actual knowledge of the circumstances surrounding the claim... [s]uch knowledge -- standing alone -- constitutes neither substantial compliance nor basis for estoppel”).)

Here, judicially noticeable facts establish that Plaintiffs have yet to file a government claim for the alleged nuisance, and in opposition, Plaintiffs argue that “Plaintiffs may still present a claim.” However, that ignores Government Code section 954.4’s express prohibition against a suit absent the presentation of a claim to the public entity, as well as the body of case authority. (See *Le Mere, supra*, 35 Cal.App.5th at p.246 (stating that “[t]he failure to timely

present a claim to the public entity bars the claimant from filing a lawsuit against that public entity”); see also *J.J. v. County of San Diego* (2014) 223 Cal.App.4th 1214, 1219 (stating same); see also *City of San Jose, supra*, 12 Cal.3d at p. 454 (California Supreme Court stating that “[c]ompliance with the claims statutes is mandatory... and failure to file a claim is fatal to the cause of action... [t]he claims statutes provisions apply to actions brought both for nuisance and for inverse condemnation”); see also *Willis, supra*, 48 Cal.App.5th at p.1119; see also *Hernandez v. City of Stockton* (2023) 90 Cal.App.5th 1222, 1231 (stating that “[t]he failure to timely file a proper government claim is fatal to the maintenance of a civil action against a public entity”).) For this additional and separate reason, City’s demurrer to the second cause of action is SUSTAINED without leave to amend.

As to Plaintiffs’ assertion that “Plaintiffs gave the city written notice of the hazard several times through complaints to its Building Department before suit,” and that they have substantially complied with the claims statute, paragraph 17 merely alleges that City “was notified of the hazardous condition through multiple complaints made by Plaintiffs to its Building Department.” (Complaint, ¶ 17.) Here, the alleged written notice of the hazard does not mention the claim or a lawsuit against City for money or damages; instead, the complaint alleges merely that City was notified of the hazardous condition. Thus, the complaint fails to allege facts demonstrating that it substantially complied with the claims statute; rather, the complaint only alleges City’s actual knowledge of circumstances surrounding the cause of action, not information that enables City to investigate claims properly and to settle them, if appropriate, without the expense of litigation. (See *Harland, supra*, 120 Cal.App.5th at pp.1168, 1171 (stating “Plaintiffs must satisfy the claim presentation requirements even if the entity had actual knowledge of the circumstances surrounding the claim... [t]he aim of the Act is to give public entities enough information to enable them to investigate claims properly and to settle them, if appropriate, without the expense of litigation”); see also *Wood v. Riverside General Hospital* (1994) 25 Cal.App.4th 1113, 1117-1119 (finding that the plaintiff’s letters did not constitute substantial compliance as a matter of law where there was no indication that a

monetary claim was being asserted, stating that “[t]he principle [sic] purposes of the claims statute are to give notice to the municipality in order that it be afforded a timely opportunity to investigate the claim and determine the facts; and to avoid unnecessary lawsuits by giving the municipality the opportunity to settle meritorious claims without going through an avoidable trial... [under] the test of substantial compliance... the court must ask whether sufficient information is disclosed on the face of the filed claim ‘to reasonably enable the public entity to make an adequate investigation of the merits of the claim and settle it without the expense of a lawsuit’... [as there was a] failure to indicate that a monetary claim was being asserted... we conclude that, as a matter of law, there was no substantial compliance with the claims statute”).) Plaintiffs’ assertion regarding substantial compliance is without merit.

Demurrer to the sixth cause of action for violation of a mandatory duty

As to the sixth cause of action for violation of a mandatory duty, City again argues that it cannot state facts sufficient to constitute a cause of action against it as Plaintiffs have failed to present a government claim. For identical reasons, Plaintiffs’ failure to timely file a proper government claim is fatal to the maintenance of a civil action against City, a public entity. (See *Le Mere, supra*, 35 Cal.App.5th at p.246 (stating that “[t]he failure to timely present a claim to the public entity bars the claimant from filing a lawsuit against that public entity”); see also *J.J., supra*, 223 Cal.App.4th at p.1219 (stating same); see also *City of San Jose, supra*, 12 Cal.3d at p. 454 (California Supreme Court stating that “[c]ompliance with the claims statutes is mandatory... and failure to file a claim is fatal to the cause of action”); see also *Willis, supra*, 48 Cal.App.5th at p.1119 (stating that “the timely filing of a written government claim is an *element* that a plaintiff is required to prove in order to prevail on his or her cause of action”); see also *Hernandez v. City of Stockton* (2023) 90 Cal.App.5th 1222, 1231 (stating that “[t]he failure to timely file a proper government claim is fatal to the maintenance of a civil action against a public entity”).) City’s demurrer to the sixth cause of action is SUSTAINED without leave to amend on this basis.

Moreover, the sixth cause of action cites to Government Code section 815.6, the general statutory provision that states that “[w]here a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.” (Gov. Code § 815.6.) The California Supreme Court has stated that in order to state a cause of action against a public entity for violation of a mandatory duty, it must allege facts supporting that “(1) a mandatory duty is imposed by an enactment, (2) the duty was designed to protect against the kind of injury allegedly suffered, and (3) breach of the duty proximately caused injury.” (*State Dept. of State Hospitals v. Super. Ct. (Novoa)* (2015) 61 Cal.4th 339, 348; see also *State of California v. Super. Ct. (Perry)* (1984) 150 Cal.App.3d 848, 854 (stating that “Government Code section 815.6 contains a three-pronged test for determining whether liability may be imposed on a public entity: (1) an enactment must impose a mandatory, not discretionary, duty...; (2) the enactment must intend to protect against the kind of risk of injury suffered by the party asserting section 815.6 as a basis for liability...; and (3) breach of the mandatory duty must be a proximate cause of the injury suffered”).) Further, “to state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity.” (*City of Los Angeles v. Super. Ct. (Wong)* (2021) 62 Cal.App.5th 129, 138 (also stating that “statutory causes of action must be pleaded with particularity”); see also *Covenant Care, Inc. v. Super. Ct. (Inclan)* (2004) 32 Cal.4th 771, 790 (stating that “statutory causes of action must be pleaded with particularity”); see also *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802 (stating that “in California all government tort liability is dependent on the existence of an authorizing statute or ‘enactment’... and to state a cause of action every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty”).) Here, the sixth cause of action fails to identify any “enactment,” much less a duty imposed by an enactment, the articulation of how the duty was designed to protect against the kind of injury allegedly suffered, or how the breach

of the duty imposed by the enactment caused Plaintiffs' injury. "Duty cannot be alleged simply by stating 'defendant had a duty under the law'; that is a conclusion of law, not an allegation of fact. The facts showing the existence of the claimed duty must be alleged. Since the duty of a governmental agency can only be created by statute or 'enactment,' the statute or 'enactment' claimed to establish the duty must at the very least be identified." (*Searcy, supra*, 177 Cal.App.3d at p.802 (also stating that a failure to identify the enactment "places nothing in issue").) Amazingly, Plaintiffs concede that "[t]he enactment claimed to create a mandatory duty 'must at the very least be identified'" (Opposition, p.6:18-19, citing *Searcy, supra*, 177 Cal.App.3d at p.802), but then fail to identify any enactment in their opposition. (See *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 (stating that "by failing to address the statute... appellants impliedly concede... [the] point"); see also *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 (stating that the plaintiff's "failure to address the threshold question of intent effectively concedes that issue").) Again, as stated by the California Supreme Court and the Sixth District, "Plaintiff[s] must show in what manner [they] can amend [their] complaint and how that amendment will change the legal effect of [their] pleading." (*Cooper v. Leslie Salt Co.* (1969) 70 Cal.2d 627, 636; see also *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 (stating same); see also *Hendy v. Losse* (1991) 54 Cal.3d 723, 742 (stating that "[t]he burden is on the plaintiff, however, to demonstrate the manner in which the complaint might be amended"); see also *Apple Inc. v. Super. Ct. (The Police Retirement System of St. Louis)* (2017) 18 Cal.App.5th 222, 258 (Sixth District stating that "[i]t is generally the plaintiff's burden to 'show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading'"); see also *Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 971 (Sixth District stating that "the plaintiff bears the burden of showing 'in what manner [it] can amend [its] complaint and how that amendment will change the legal effect of [its] pleading'").) For this additional and separate reason, City's demurrer to the sixth cause of action is SUSTAINED without leave to amend.

City shall prepare and submit a proposed final order consistent with this tentative ruling.

Calendar Line 7

Case Name: *Bentz v. Bentz*

Case No.: 25CV479632

Generally, a party must file a cross-complaint against any of the parties who filed the complaint against him before or at the same as the answer to the complaint. (See Code Civ. Proc. § 428.50, subd. (a).) The Court may grant leave to file a cross-complaint any time after that if the failure to plead a cause of action was the result of oversight, inadvertence, mistake, neglect or other cause. (See Code Civ. Proc. §§ 426.50, 428.50, subd. (c).) Leave to file the cross-complaint is mandatory if the party who failed to plead the cause of action acted in good faith, and is liberally construed to avoid forfeiture of causes of action. (See Code Civ. Proc. § 426.50; see also *Sidney v. Super. Ct. (Kinoshita)* (1988) 198 Cal.App.3d 710, 718 (stating that “what constitutes ‘good faith’ must be determined in conformity with the liberality conferred upon the trial courts by the section [426.50] and by prior law”); see also *Silver Orgs. v. Frank* (1990) 217 Cal.App.3d 94, 99 (stating that “[a] motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result”).) “[T]his principle of liberality requires that a strong showing of bad faith be made in order to support a denial of the right to file a cross-complaint under this section.” (*Foot’s Transfer & Storage Co. v. Super. Ct. (Worth)* (1980) 114 Cal.App.3d 897, 902; see also *Silver Orgs. v. Frank* (1990) 217 Cal.App.3d 94, 99 (stating that “*substantial evidence* must support the trial court’s decision... ‘substantial evidence’... is evidence... of ponderable legal significance,... reasonable in nature, credible, and of solid value”) (italics original).) “‘Bad faith’ is defined as ‘[t]he opposite of ‘good faith,’ generally implying or involving actual or constructive fraud, or a design to mislead or deceive another, or a neglect or refusal to fulfill some duty or some contractual obligation, not prompted by an honest mistake..., but by some interested or sinister motive[,...] not simply bad judgment or negligence,

but rather... the conscious doing of a wrong because of dishonest purpose or moral obliquity;... it contemplates a state of mind affirmatively operating with furtive design or ill will.” (*Silver Orgs.*, *supra*, 217 Cal.App.3d at p.100.) A showing of bad faith cannot be based on neglect, mistake, inadvertence or oversight. (*Id.* at p.101.)

Here, plaintiff and cross-defendant Melissa Rae Bentz (“Melissa”) argues that: defendant James Lee Bentz’s (“James”) counsel promised Plaintiff that she would be paid in full from the sale of James’ home, then reneged on that promise; James’ central allegation of the proposed cross-complaint (“XC”) is directly contradicted by James’ own sworn filings; the proposed cross-claims are time-barred; the timing of the XC reveals its tactical purpose; James’ reneged promise, James’ counsel’s submission of false declarations, and the scheduling of the motion during Plaintiff’s counsel’s noticed unavailability confirm bad faith; the proposed XC fails to state a cause of action; and, granting leave would substantially prejudice Melissa. In support of her opposition, Melissa presents the declarations of herself and her counsel, Kimberly Whitfield.

Melissa argues that if the motion for leave to file the XC was granted, she would be substantially prejudiced because she would have to answer to the XC’s causes of action for fraud and breach of fiduciary duty, conduct additional discovery, litigate James’ role at Bentz Direct, and incur attorney’s fees. (See Opposition, p.14:3-10.) However, participation in litigation does not by itself demonstrate prejudice. Moreover, Melissa’s evidence in opposition does not support any bases for her argument.

As to Melissa’s argument that the XC fails to state facts sufficient to constitute a cause of action, even if correct, this does not necessarily mean that the cause of action is futile. This does not foreclose Melissa from filing a demurrer to the XC. As to Melissa’s remaining arguments, her evidence does not demonstrate that James acted in bad faith in failing to file the XC at the time of James’ filing of his answer.

Accordingly, James' motion for leave to file the XC is GRANTED. James shall file his proposed XC within 10 days of this Order.

Additionally, James shall prepare and submit a proposed final order consistent with this tentative ruling.

Calendar Line 8

Case Name: *Hao Chen v. Zhipeng Lu*

Case No.: 25CV481161

Plaintiff Hao Chen ("Chen") filed this action against defendant Zhipeng (aka Nathan) Lu ("Lu"). Lu now brings a special motion to strike under Code of Civil Procedure section 425.16.

I. SPECIAL MOTION TO STRIKE

A. General Legal Standards

Code of Civil Procedure section 425.16 authorizes a person to bring a special motion to strike allegations "arising from any act . . . in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue." (Code Civ. Proc., § 425.16, subd. (b)(1).) This is commonly referred to as an "anti-SLAPP" motion.

Courts evaluate anti-SLAPP motions using a two-step analysis. (*Country Side Villas Homeowners Assn. v. Ivie* (2011) 193 Cal.App.4th 1110, 1116.) "First, the moving defendant must identify 'all allegations of protected activity' and show that the challenged claim arises from that activity. [Citations.]" (*Bel Air Internet, LLC v. Morales* (2018) 20 Cal.App.5th 924, 934.) "Second, if the defendant makes such a showing, the 'burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated.' [Citation.] Without resolving evidentiary conflicts, the court determines 'whether the plaintiff's showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment.' [Citation.]" (*Ibid.*)

B. First Step: Protected Activity

1. Legal Standards

"A defendant meets his or her burden on the first step of the anti-SLAPP analysis by demonstrating the acts underlying the plaintiff's cause of action fall within one of the four categories spelled out in [Code of Civil Procedure] section 425.16, subdivision (e). [Citations.]" (*Collier v. Harris* (2015) 240 Cal.App.4th 41, 50-51.) Examples of protected speech include:

(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

(Code Civ. Proc., § 425.16, subd. (e).)

“In deciding whether the ‘arising from’ requirement is met, a court considers ‘the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’ [Citations.]” (*Peregrine Funding, Inc. v. Sheppard Mullin Richter & Hampton LLP* (2005) 133 Cal.App.4th 658, 670.)

“At the first step [of an anti-SLAPP analysis], the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them.” (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396 (*Baral*).) Lu’s anti-SLAPP motion seeks to strike each of the four causes of action alleged in the complaint. Here, Lu notes that in “September 2025, Lu posted a short video on a social media platform (identified as ‘RedNote’) in which he discussed Chen’s business conduct and Chen’s use of government pandemic relief funds. The video addressed Lu’s perspective regarding their business dealings and his concerns about those issues. Chen thereafter filed this action asserting causes of action for libel, slander, false light, and intentional infliction of emotional distress, all arising from the same alleged statements.” (Memorandum of Points and Authorities in Support of Anti-SLAPP Motion (“MPA”), p. 3:20-26.) The court agrees with Lu that the four of the causes of action alleged in the complaint all arise from the same allegedly defamatory statements. (See Complaint, ¶¶ 26-46.)

In opposition, Chen argues that Lu’s anti-SLAPP motion fails because Lu failed to “submit a record of his *RedNote* post, and in failing to do so, also fails to meet his burden to establish that his post was protected speech as a matter of law.” (Opposition to Anti-SLAPP Motion (“Opposition”), p. 6:6-8.) Chen cites no legal authority in support of this argument, and the court is not persuaded otherwise. A “moving party may rely on the plaintiff’s allegations alone in making the showing necessary under prong one without submitting supporting evidence.” (*Supershuttle International, Inc. v. Labor & Workforce Development Agency* (2019) 40 Cal.App.5th 1058, 1065, internal citation and quotation marks omitted.)

The court turns to the parties’ remaining arguments. Lu argues that the speech alleged in the complaint constitutes protected speech under Code of Civil Procedure section 425.16, subdivisions (e)(3) and (e)(4). (MPA, p. 6:8-10.) The court agrees.

Code of Civil Procedure section 425.16, subdivision (e)(3) defines protected activity as including “any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest.” (Code Civ.

Proc., § 425.16, subd. (e)(3).) “A ‘public forum’ is traditionally defined as a place that is open to the public where information is freely exchanged.” (*Damon v. Ocean Hills Journalism Club* (2000) 85 Cal.App.4th 468, 475, internal citation omitted.) “Under its plain meaning, a public forum is not limited to a physical setting, but also includes other forms of public communication.” (*Id.* at p. 476, internal citation omitted.)

The court agrees with Lu that the statements were made in a public forum. (MPA, p. 5:14-24.) The complaint alleges that Lu posted a short video on “RedNote,” a social media website with 143 million daily active users worldwide. (Complaint, ¶¶ 21-22.) Moreover, a declaration submitted by Lu states that Lu posted a video on RedNote that “was available to the public and was not limited to a private group, private account, or restricted audience.” (Declaration of Zhipeng (aka Nathan) Lu in Support of Special Motion to Strike, ¶ 6 (“Lu Declaration” or “Lu Decl.”).) “Web sites that are accessible free of charge to any member of the public where members of the public may read the views and information posted, and post their own opinions, meet the definition of a public forum for purposes of section 425.16.” (*Ampex Corp. v. Cargle* (2005) 128 Cal.App.4th 1569, 1576, internal citation omitted.)

However, “not every Web site post involves an issue of public interest. Mere publication on a Web site does not turn otherwise private information into a matter of public interest. [Citation.] Thus, the remaining question is whether these statements were made in connection with an issue of public interest.” (*Greiner v. Taylor* (2015) 234 Cal.App.4th 471, 481 (*Greiner*).)

Code of Civil Procedure section 425.16 “does not define ‘an issue of public interest.’ Nevertheless, the statute requires the issue to include attributes that make it one of public, rather than merely private, interest. [Citation.] A few guiding principles can be gleaned from decisional authorities. For example, ‘public interest’ is not mere curiosity. Further, the matter should be something of concern to a substantial number of people. Accordingly, a matter of concern to the speaker and a relatively small, specific audience is not a matter of public interest. Additionally, there should be a degree of closeness between the challenged statements and the asserted public interest. The assertion of a broad and amorphous public interest that can be connected to the specific dispute is not sufficient.” (*Greiner, supra*, 234 Cal.App.4th at pp. 481-482, internal citations omitted.) Also, “the term has been broadly construed to include private conduct that impacts a broad segment of society or that affects a community in a manner similar to that of a governmental entity.” (*Id.* at p. 482, internal citation omitted.) Thus, the “precise boundaries of an issue of ‘public interest’ have not been defined. Nevertheless, in each case where it was determined that an issue of public interest existed, the subject statements either concerned a person or entity in the public eye, conduct that could directly affect a large number of people beyond the direct participants or a topic of widespread, public interest.” (*Ibid.*, internal citations and quotation marks omitted.)

The court agrees with Lu that the alleged statements concern an issue of public interest. Here, the alleged statement concerns a social media post made on RedNote, alleged to be a “social media app . . . which is often described as a combination of

Instagram and Pinterest and very popular in mainland China and Chinese American community [sic] in US. It is reported to have 143 million daily active users worldwide.” (Complaint, ¶ 21.) According to Lu, the video he posted on RedNote “was available to the public and was not limited to a private group, private account, or restricted audience.” (Lu Decl., ¶ 6.)¹ Furthermore, the alleged statements concern misappropriated public funds and the “Legislature has made clear that the government’s business is the people’s business and that California’s citizens have a right to full disclosure of all information which affects the public fisc.” (*Maranatha Corrections, LLC v. Department of Corrections & Rehabilitation* (2008) 158 Cal.App.4th 1075, 1086 (*Marantha*), internal citation omitted.)

The court is inclined to agree with Lu that *Weinberg v. Feisel* (2003) 110 Cal.App.4th 1122 (*Weinberg*) and *Abumeira v. Stephens* (2016) 246 Cal.App.4th 1291 (*Abumeira*), relied on by Chen, are distinguishable. (Opposition to Lu’s Special Motion to Strike (“Opposition”), pp. 6:9-7:17.) In *Weinberg*, the plaintiff alleged that the defendant had stolen from him a valuable collector’s item. (*Weinberg, supra*, 110 Cal.App.4th at p. 1126.) The Court of Appeal affirmed the trial court’s denial of the defendant’s anti-SLAPP motion, noting that the “it is alleged that defendant began a private campaign, so to speak, to discredit plaintiff in *the eyes of a relatively small group of fellow collectors*. . . .” (*Id.* at p. 1127, emphasis added; see also *Abumeira, supra*, 246 Cal.App.4th at p. 1298 [“Stephens did not present any evidence to establish that the Abuemeiras were anyone other than ‘private, anonymous’ parties or that the dispute was anything other than a private controversy. . . .”], internal citations and quotation marks omitted.) Here, the allegations concern statements regarding the misuse of public funds—rather than a dispute between parties accusing the other of theft or video of a brawl between neighbors—and were posted on a website that “is reported to have 143 million daily active users worldwide.” (Complaint, ¶ 21; see *Maranatha, supra*, 158 Cal.App.4th at p. 1086 [the “Legislature has made clear that the government’s business is the people’s business and that California’s citizens have a right to full disclosure of all information which affects the public fisc.”].)

For the reasons discussed above, the court concludes that Lu has met his burden on the first step of the anti-SLAPP analysis.

II. Second Step: Probability of Prevailing

¹ Chen does not object to paragraph 6 of the Lu Declaration but does submit several other objections to the Lu Declaration. The court declines to rule on these objections as they are not material to the outcome of this motion. The court notes, however, that many of these objections appear to be without merit. For example, Chen objects to Lu’s statement that he has “personal knowledge of the truth and accuracy of the facts set forth herein, and if called upon as a witness, I could competently testify thereto.” (Objections to Lu Declaration, no. 1; see also Lu Decl., ¶ 2.) The court struggles to understand how Lu “lacks” the requisite foundation to testify as to his own knowledge of facts.

The court now turns to whether Chen has demonstrated a probability of the complaint's four causes of action prevailing, the second step in an anti-SLAPP analysis. A plaintiff meets its burden of showing a probability of prevailing by demonstrating "that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited." (*Soukop v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291 (*Soukop*), internal citations and quotation marks omitted.) This "probability of prevailing" standard is similar to the standard governing a motion for summary judgment in that it is the plaintiff's burden to make a prima facie showing of facts that would support a judgment in the plaintiff's favor. (*Taus v. Loftus* (2007) 40 Cal.4th 683, 714.) Stated differently, the "plaintiff need only establish that his or her claim has 'minimal merit' to avoid being stricken as a SLAPP." (*Soukup, supra*, 39 Cal.4th at p. 291, internal citations omitted.)

a. First and Second Causes of Action: Libel and Slander

"The elements of a defamation claim are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage." (*Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1369 (*Wong*), internal citation omitted.) The question of whether the challenged statements convey the requisite factual imputation is ordinarily a question of law for the court. (*Kahn v. Bower* (1991) 232 Cal.App.3d 1599, 1608.) But some statements are ambiguous and cannot be characterized as factual or nonfactual as a matter of law. (*Ibid.*) Under these circumstances, it is for the jury to determine whether an ordinary reader would have understood the statements as a factual assertion. (*Ibid.*) Slander and libel are two types of defamation. (See Civ. Code, § 44.)

The complaint alleges that Lu stated that "he had used SBA loan—those hundreds of billions of dollars relief funds the U.S. federal government handed out to small businesses for payroll and rent during mask period. The funds were not allowed to be used for dividends. Yet this guy used the money to pay dividends and roped me in. At the time, I thought it was fine, but actually it was a trap." (Complaint, ¶ 22.) Lu argues that this alleged statement was "nonactionable opinion, rhetoric, or hyperbole." (MPA, p. 7:3-7.) The court is not persuaded by this argument. The "sine qua non of recovery for defamation . . . is the existence of falsehood. Because the statement must contain a provable falsehood, courts distinguish between statements of facts and statements of opinion for purposes of defamation liability. Although statements of fact may be actionable as [defamatory], statements of opinion are constitutionally protected." (*McGarry v. University of San Diego* (2007) 154 Cal.App.4th 97, 112 (*McGarry*), internal citations and quotation marks omitted.) "The critical question is not whether a statement is fact or opinion, but whether a reasonable fact finder could conclude the published statement declares or implies a provably false assertion of fact." (*Wong, supra*, 189 Cal.App.4th at p. 1370, internal citations and quotation marks omitted.) Whether Chen used the "SBA loan . . . to pay dividends . . ." could potentially be a provably false assertion of fact. (Complaint, ¶ 22.) This statement is reasonably susceptible to a defamatory interpretation and cannot be characterized as "mere opinion" as a matter of law.

Chen has also submitted to the court evidence indicating that Lu's alleged statements about Chen's misappropriation of public funds were false. (Declaration of Plaintiff Hao Chen in

Support of Opposition to Anti-SLAPP Motion, ¶¶ 3-6 [“I did not use SBA loan and/or Payment Protection Plan funds obtained by Lusso for profit sharing as asserted by Nathan Lu on RedNote. I have personally reviewed financial statements and have traced the expenditure of the Lusso’s SBA loan and the Covid relief funds. None of them were used for profit sharing. . . .”], Exs. A-B; Declaration of Jerry Huang in Support of Opposition to Anti-SLAPP Motion, ¶¶ 2-6, Exs. A, B.)

Nevertheless, the court is persuaded by Lu’s argument that Chen cannot establish that the allegedly defamatory statements “were ‘of and concerning’ Chen.” (MPA, pp. 6:25-7:2.) “An otherwise defamatory statement is actionable only if it is ‘of and concerning’ the plaintiff. . . . To satisfy the requirement, the plaintiff must show the statement expressly mentions her or refers to her by reasonable implication. The plaintiff must also show the statement was understood by at least one third person to have concerned her.” (*Dickinson v. Cosby* (2019) 37 Cal.App.5th 1138, 1160 internal citations omitted.)

Chen argues that he can establish that Lu made the alleged statements “of and concerning” Chen because of the “many comments made by third parties in response to Defendant Lu’s post . . .” (Opposition, pp. 9:16-10:12, citing Declaration of Julie Bonnel Rogers in Support of Opposition to Anti-SLAPP Motion (“Rogers Declaration” or “Rogers Decl.”), Ex. B.) In support of this argument, Chen cites an exhibit purportedly attached to the Rogers Declaration. While the Rogers Declaration describes “Exhibit A” and Exhibit B,” however, the declaration filed with the court does not actually include or attach these exhibits. A plaintiff must show that there is admissible evidence that, if credited, would be sufficient to sustain a favorable judgment. (*McGarry, supra*, 154 Cal.App.4th at p. 108.) The court cannot evaluate the sufficiency of evidence not before it. For similar reasons, the court is also not persuaded by Chen’s argument regarding malice. (Opposition, p. 10:23-27, citing Rogers Decl., ¶ A.) Therefore, the court finds that Chen has failed to establish a “probability of prevailing” on the complaint’s first and second causes of action.

The court GRANTS Lu’s special motion to strike the complaint’s first and second causes of action.

b. Third Cause of Action: False Light

“False light is a species of invasion of privacy, based on publicity that places a plaintiff before the public in a false light that would be highly offensive to a reasonable person, and where the defendant knew or acted in reckless disregard as to the falsity of the publicized matter and the false light in which the plaintiff would be placed. To establish a false light claim based on a defamatory publication, a plaintiff must meet the same requirements as for a defamation claim.” (*Balla v. Hall* (2021) 59 Cal.App.5th 652, 687, internal citations and quotation marks omitted.)

Given that when “a false light claim is coupled with a defamation claim, the false light claim is essentially superfluous, and stands or falls on whether it meets the same requirements as the defamation cause of action,” the court finds that Chen has failed to establish a “probability of prevailing” for the complaint’s third cause of action for false light. (*Eisenberg v. Alameda*

Newspapers, Inc. (1999) 74 Cal.App.4th 1359, 1385, fn. 13; see also *Mitchell v. Twin Galaxies, LLC* (2021) 70 Cal.App.5th 207, 224 [“Because we conclude Mitchell’s defamation claim survives the anti-SLAPP motion, his false light claim stands as well.”].) The court reiterates that Chen relies on Exhibits A and B to the Rogers Declaration in opposition to Lu’s anti-SLAPP motion, but the Rogers Declaration on file with the court, while describing these exhibits, does not actually include or attach these exhibits. (Opposition, pp. 11:13-12:12:9; see, e.g., Rogers Decl.)

The court GRANTS Lu’s special motion to strike the complaint’s third cause of action.

c. Fourth Cause of Action: Intentional Infliction of Emotional Distress

“A cause of action for intentional infliction of emotional distress exists when there is (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. A defendant’s conduct is outrageous when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. And the defendant’s conduct must be intended to inflict injury or engaged in with the realization that injury will result. Liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. . . . With respect to the requirement that the plaintiff show emotional distress, this court has set a high bar. Severe emotional distress means emotional distress of such a substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it.” (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-1051, internal quotations and citations omitted, disapproved on another ground in *Wawrzewski v. United Airlines, Inc.* (2024) 106 Cal.App.5th 663, 699.)

Chen relies on an exhibit purportedly attached to the Rogers Declaration in opposing Lu’s anti-SLAPP motion. (Opposition, pp. 12:10-26, citing Rogers Decl., Ex. A.) Again, the court notes that these exhibits are not attached to the Rogers Declaration and do not otherwise appear to have been submitted to the court. (See, e.g., Rogers Decl.) For this reason, the court finds that Chen has not met his burden to establish a “probability of prevailing” as to the complaint’s fourth cause of action.

The court GRANTS Lu’s special motion to strike the complaint’s fourth cause of action.

III. Attorney’s Fees

The “prevailing defendant” on the motion to strike “shall be entitled” to recover his or her attorney fees and costs. (Code Civ. Proc., § 425.16, subd. (c).) Here, the motion and reply are not accompanied by any declaration stating the fees and costs incurred in bringing the special motion to strike. Therefore, Lu will have to bring a separate motion for attorneys’ fees in order to recover any monetary award.

IV. Conclusion

The court GRANTS Lu's special motion to strike the complaint's first, second, third, and fourth causes of action.